

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 944

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO DISTRIBUTION OF MONEYS IN LIQUOR ACCOUNT; AMENDING SECTION 23-404, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DISTRIBUTION OF MONEYS IN THE LIQUOR ACCOUNT; AMENDING SECTION 33-2139, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 23-404, Idaho Code, be, and the same is hereby amended to read as follows:

23-404. DISTRIBUTION OF MONEYS IN LIQUOR ACCOUNT. (1) The moneys received into the liquor account shall be transferred or appropriated as follows:

(a) An amount of money equal to the actual cost of purchase of alcoholic liquor and payment of expenses of administration and operation of the division, as determined by the director and certified quarterly to the state controller, shall be transferred back to the division; provided, that the amount so transferred back for administration and operation of the division shall not exceed the amount authorized to be expended by regular appropriation authorization.

(b) ~~From fiscal year 2006 through fiscal year 2009, forty percent (40%) of~~ Beginning in fiscal year 2027, the balance remaining after transferring the amounts authorized by paragraph (a) of this subsection shall be transferred or appropriated pursuant to this paragraph. ~~Beginning in fiscal year 2010, the percentage transferred pursuant to this paragraph shall increase to forty-two percent (42%) with an increase of two percent (2%) for each subsequent fiscal year thereafter until fiscal year 2014, when such percentage shall be fifty percent (50%).~~

~~(i) For fiscal year 2006 and through fiscal year 2009, one million eight hundred thousand dollars (\$1,800,000) shall be appropriated and paid to the cities and counties as set forth in paragraph (c) (i) and (ii) of this subsection;~~

~~(ii) (i)~~ Two million eighty thousand dollars (\$2,080,000) shall be transferred annually to the substance abuse treatment fund created in section 23-408, Idaho Code;

~~(iii) (ii)~~ Eight hundred thousand dollars (\$800,000) shall be transferred annually to the state community college account created in section 33-2139, Idaho Code;

~~(iv) (iii)~~ One million two hundred thousand dollars (\$1,200,000) shall be transferred annually to the public school income fund as defined in section 33-903, Idaho Code;

~~(v)~~ (iv) Six hundred fifty thousand dollars (\$650,000) shall be transferred annually to the cooperative welfare fund in the dedicated fund;

~~(vi)~~ (v) Six hundred eighty thousand dollars (\$680,000) shall be transferred annually to the drug court, mental health court and family court services fund;

~~(vii)~~ (vi) Four hundred forty thousand dollars (\$440,000) shall be transferred annually to the drug and mental health court supervision fund created in section 23-409, Idaho Code; and

~~(viii)~~ The balance shall be transferred to the general fund, after one and one-half percent (1.5%) of such balance is transferred to the peace officers standards and training fund created in section 19-5116, Idaho Code.

(vii) Five million dollars (\$5,000,000) shall be transferred annually to the Idaho law enforcement fund established in section 67-2914, Idaho Code.

(c) Beginning in fiscal year 2027, from the balance remaining after the transfers authorized by paragraphs (a) and (b) of this subsection, one and one-half percent (1.5%) of such remaining balance shall be transferred to the peace officers standards and training fund established in section 19-5116, Idaho Code, and forty-eight and one-half percent (48.5%) of such remaining balance shall be transferred to the general fund.

~~(e)~~ (d) The remainder of the moneys received in the liquor account The remaining fifty percent (50%) of the balance after the transfers authorized by paragraphs (a) and (b) of this subsection shall be appropriated and paid as follows:

(i) For fiscal year 2018, forty percent (40%) of the balance remaining after the transfers authorized by paragraphs (a) ~~and~~, (b), ~~and~~ (c) of this subsection have been made is hereby appropriated to and shall be paid to the several counties. For fiscal year 2019, the amount apportioned to counties shall decrease to thirty-nine and two-tenths percent (39.2%) with a decrease of eight-tenths percent (.8%) for each subsequent fiscal year thereafter until fiscal year 2023 when such percentage shall be thirty-six percent (36%). Each county shall be entitled to an amount in the proportion that liquor sales through the division in that county during the state's previous fiscal year bear to total liquor sales through the division in the state during the state's previous fiscal year, except that no county shall be entitled to an amount less than that county received in distributions from the liquor account during the state's fiscal year 1981.

(ii) For fiscal year 2018, sixty percent (60%) of the balance remaining after the transfers authorized by paragraphs (a) ~~and~~, (b), ~~and~~ (c) of this subsection have been made is hereby appropriated to and shall be paid to the several cities. For fiscal year 2019, the amount apportioned to the several cities shall decrease to fifty-seven and eight-tenths percent (57.8%) with a decrease of two and two-tenths percent (2.2%) for each subsequent fiscal year thereafter until fiscal year 2023 when such percentage shall be forty-

1 nine percent (49%). Amounts paid to the several cities shall be
 2 distributed as follows:

3 1. Ninety percent (90%) of the amount appropriated to the
 4 cities shall be distributed to those cities that have a
 5 liquor store or distribution station located within the cor-
 6 porate limits of the city. Each such city shall be entitled
 7 to an amount in the proportion that liquor sales through the
 8 division in that city during the state's previous fiscal
 9 year bear to total liquor sales through the division in the
 10 state during the state's previous fiscal year, except that
 11 no city shall be entitled to an amount less than that city
 12 received in distributions from the liquor account during the
 13 state's fiscal year 1981;

14 2. Ten percent (10%) of the amount appropriated to the
 15 cities shall be distributed to those cities that do not have
 16 a liquor store or distribution station located within the
 17 corporate limits of the city. Each such city shall be enti-
 18 tled to an amount in the proportion that its population bears
 19 to the population of all cities in the state that do not have
 20 a liquor store or distribution station located within the
 21 corporate limits of the city, except that no city shall be
 22 entitled to an amount less than that city received in dis-
 23 tributions from the liquor account during the state's fiscal
 24 year 1981.

25 (iii) For fiscal year 2019, an additional amount of three percent
 26 (3%) of the balance remaining after the transfers authorized by
 27 paragraphs (a) and (b) of this subsection have been made is hereby
 28 appropriated to the several counties for deposit in the district
 29 court fund. Such funds shall be dedicated to provide for the suit-
 30 able and adequate quarters of the magistrate division of the dis-
 31 trict court, including the facilities and equipment necessary to
 32 make the space provided functional for its intended use, and shall
 33 provide for the staff personnel, supplies and other expenses of
 34 the magistrate division. For fiscal year 2020, the amount appor-
 35 tioned to the several counties for deposit in the district court
 36 fund shall be six percent (6%) with an increase of three percent
 37 (3%) for each subsequent year until fiscal year 2023 when such per-
 38 centage shall be fifteen percent (15%). Amounts paid to the sev-
 39 eral counties shall be distributed as follows:

40 1. The first four hundred forty thousand dollars (\$440,000)
 41 shall be distributed to each of the forty-four (44) counties
 42 in equal amounts;

43 2. Fifty percent (50%) of the remaining funds shall be dis-
 44 tributed to the forty-four (44) counties in proportion to
 45 the population of the county in relation to the population of
 46 the state; and

47 3. Fifty percent (50%) of the remaining funds shall be dis-
 48 tributed to the forty-four (44) counties in proportion to
 49 the number of misdemeanor and infraction filings initiated
 50 by city law enforcement officers in the county during the

1 state's previous fiscal year in relation to the proportion
2 of the number of misdemeanor and infraction filings initi-
3 ated by all city law enforcement officers in the state.

4 (2) All transfers and distributions shall be made periodically, but not
5 less frequently than quarterly, but the apportionments made to any county or
6 city that may during the succeeding three (3) year period be found to have
7 been in error either of computation or transmittal shall be corrected during
8 the fiscal year of discovery by a reduction of apportionments in the case of
9 over-apportionment or by an increase of apportionments in the case of under-
10 apportionment. The decision of the director on entitlements of counties and
11 cities shall be final and shall not be subject to judicial review.

12 (3) For purposes of this section, "city law enforcement officer" means
13 an individual, either employed directly by a city or by way of a contract for
14 law enforcement services with another city or county, authorized to investi-
15 gate, enforce, prosecute or punish violations of city or state statutes, or-
16 dinances or regulations.

17 SECTION 2. That Section 33-2139, Idaho Code, be, and the same is hereby
18 amended to read as follows:

19 33-2139. STATE COMMUNITY COLLEGE ACCOUNT CREATED. There is hereby
20 created a state community college account in the state operating fund in the
21 state treasurer's office to which shall be credited all moneys that may be
22 transferred pursuant to section 23-404(1)(b) ~~(iii)~~ (ii), Idaho Code. The
23 state treasurer shall make such disbursements from the account as may be
24 ordered by the state board of education in accordance with the provisions of
25 this act.

26 SECTION 3. An emergency existing therefor, which emergency is hereby
27 declared to exist, this act shall be in full force and effect on and after
28 July 1, 2026.